

Formal Vendor Quotation and Technical Proposal: QTN-2026-8842A

Document Metadata and Corporate Header Information

Vendor / Supplying Entity: Centaurix Heavy Industries Ltd. *Advanced Manufacturing & Capital Equipment Division* Corporate Identity Number (CIN): U29100UP2011PLC063696 Registered Facility and Engineering Works: Plot No. E-9/3 & E-12, GIDA (Gorakhpur Industrial Development Authority), Sahjanwa, District Gorakhpur, Uttar Pradesh, 273209, India Goods and Services Tax Identification Number (GSTIN): 09AAACI2799F1ZN Primary Commercial Contact: commercial.contracts@centaurixglobal.com | +91-551-2700132 *Corporate Logo Description: A dark-steel geometric anvil encompassed by a precision planetary gear, signifying heavy industrial strength, lifecycle durability, and precise engineering excellence.*

Client / Purchasing Entity (The Buyer): JSW Energy Ltd. Project Division - Unit 4 Infrastructure Expansion Registered Corporate Office: PB No. 9, Toranagallu, Bellary, Karnataka, 583123, India GSTIN / Unique ID: 29AAACJ8109N1Z4

Quotation Reference Number: QTN-2026-8842A **Issue Date:** June 17, 2026 **Strict Validity Expiration:** July 17, 2026 (Exactly 30 Days from Issue Date) **Incoterms:** DAP (Delivered at Place) - JSW Toranagallu Project Site, Karnataka, India (Incoterms 2020)

1. Executive Summary and Commercial Value Proposition

Centaurix Heavy Industries Ltd. (hereinafter formally referred to as "the Vendor" or "the Company") formally acknowledges and expresses gratitude for the Request for Proposal (RFP) submitted by JSW Energy Ltd. (hereinafter referred to as "the Client" or "the Buyer"). This RFP regards the procurement, installation, and complete commissioning of heavy-duty hydraulic pressing and automated material handling equipment specifically intended for the Toranagallu Unit 4 expansion project. The Vendor recognizes the critical nature of this expansion and the necessity for capital equipment that operates seamlessly within an intensive, multi-shift production environment.

The ensuing quotation outlines a comprehensive, turnkey engineering solution tailored meticulously to the rigorous technical specifications mandated by the Client during the preliminary engineering phase. The proposed capital equipment suite is anchored by the proprietary CHX-1000T Heavy Duty Hydraulic Forging Press, an industry-leading asset which integrates state-of-the-art closed-loop thermodynamic monitoring, redundant safety interlocks, and advanced programmable logic controllers (PLCs). This architecture is specifically designed to maximize continuous operational uptime in extreme industrial environments, thereby directly reducing the Client's Total Cost of Ownership (TCO) while enhancing throughput efficiency. Furthermore, this overarching quotation encompasses all requisite auxiliary systems, including automated material handling conveyors, customized die tooling tailored to the Client's metallurgical requirements, and an optional comprehensive

Annual Maintenance Contract (AMC) intended to guarantee long-term operational efficacy and lifecycle predictability.

This document serves as a formal commercial offer and a technical framework for the proposed procurement, subject to the execution of a mutually agreeable Master Supply Agreement (MSA). The pricing structures formulated herein reflect significant volume-based considerations and are engineered to deliver optimized capital expenditure efficiency for the Client, while strictly adhering to global compliance, industrial safety, and complex domestic tax regulations. The Vendor anticipates that the proposed solution will not only meet but substantially exceed the operational benchmarks established by the Client's procurement and engineering divisions.

2. Definitions and Contractual Interpretations

For the purposes of this formal quotation and any subsequent Purchase Order (PO) or Master Supply Agreement (MSA) derived herein, the following definitions shall apply strictly and supersede any prior colloquial or industry-standard interpretations.

The terms "The Company," "The Vendor," and "The Seller" refer exclusively to Centaurix Heavy Industries Ltd., encompassing its manufacturing subsidiaries, engineering divisions, and authorized legal successors operating within the jurisdiction of India. Conversely, "The Client" and "The Buyer" refer to JSW Energy Ltd., the entity executing the procurement of the Goods and Services and assuming the financial obligations stipulated within this document. The term "Goods" or "Equipment" refers to all physical machinery, mechanical components, spare parts, and custom tooling specified within the Complex Pricing Table of this document. "Services" denotes any engineering design, site installation, commissioning, Factory Acceptance Testing (FAT), Site Acceptance Testing (SAT), software integration, and maintenance labor provided by the Vendor's personnel or authorized subcontractors.

The "Order Acknowledgment" is defined as the formal, written confirmation issued by the Vendor upon the receipt and technical validation of the Buyer's Purchase Order. The issuance of the Order Acknowledgment represents the legal commencement of the binding contract, overriding any previous verbal agreements or preliminary technical discussions. A "Business Day" is defined as any day other than a Sunday or public holiday in the state of Uttar Pradesh, India, on which commercial banks are fully open for standard financial operations. References to "Incoterms" apply strictly to the International Rules for the Interpretation of Trade Terms published by the International Chamber of Commerce (ICC), utilizing the 2020 edition definitions for risk and cost allocation. Finally, "Software" refers to any proprietary firmware, microcode, or programmable logic embedded within the Equipment or provided as a standalone digital solution required for the operation of the physical machinery.

3. Comprehensive Technical Scope of Supply: Primary Equipment

The engineering solution proposed by the Vendor encompasses the design, fabrication, metallurgical treatment, assembly, and rigorous testing of the following primary and auxiliary systems. The specifications detailed below form the binding technical baseline. Any deviations, structural alterations, or software modifications requested by the Client post-acceptance shall

be subject to formal Change Order protocols, which will inevitably result in schedule extensions and potential price escalations.

3.1. CHX-1000T Heavy Duty Hydraulic Forging Press Architecture

The core production unit comprises a highly rigid, four-pillar hydraulic forging press engineered for continuous, multi-shift heavy manufacturing operations within high-ambient-temperature environments. The pressing capacity is rated at 1000 Metric Tons (Nominal), with the hydraulic accumulators and structural columns capable of enduring a 10% dynamic overload threshold for brief operational intervals without suffering plastic deformation.

The frame architecture is a product of exhaustive Finite Element Analysis (FEA), utilizing a monolithic steel casting approach. Post-casting, the entire frame is subjected to thermal annealing in a controlled-atmosphere furnace to relieve internal stresses and eliminate micro-fractures, ensuring microscopic dimensional stability under maximum tonnage. The Hydraulic Power Unit (HPU) features variable displacement axial piston pumps driven by high-efficiency IE4 induction motors. The closed-loop hydraulic circuit utilizes proportional servo-valves manufactured to aerospace tolerances, enabling a platen positional accuracy of ± 0.05 millimeters, an essential metric for precision forging. To mitigate the immense thermal loads generated during continuous duty cycles, the press is integrated with a high-capacity water-to-oil heat exchanger configured to maintain hydraulic fluid viscosity and temperature strictly within optimal operating parameters.

3.2. Automated Material Handling and Conveyance Systems

To facilitate the seamless ingress of raw steel billets and the safe egress of high-temperature finished forgings, the proposal includes two units of the ACV-500 automated heavy-duty conveyor system. These auxiliary units are designed to withstand the brutal thermal and mechanical shocks inherent in the forging process. The load capacity of the ACV-500 is certified at 5,000 kilograms per linear meter. The drive mechanism utilizes Variable Frequency Drive (VFD) controlled heavy-duty planetary gear motors, which communicate directly with the main press PLC. This allows for absolute synchronization with the press cycle times, eliminating bottlenecks and minimizing the time raw material spends oxidizing in the ambient atmosphere. The conveyance rollers are machined from high-wear resistant hardened steel and treated with advanced anti-corrosive industrial coatings to ensure longevity despite constant exposure to abrasive scale and lubricants.

3.3. Control Systems, Telemetry, and Automation Integration

The Equipment features highly sophisticated, interconnected digital control environments to ensure precise operation, immutable data logging, and predictive maintenance capabilities. The main control unit is built upon the Siemens SIMATIC S7-1500 Advanced Controller architecture, operating in conjunction with a 15-inch industrial-grade, impact-resistant Human Machine Interface (HMI) touch panel.

The telemetry and logging subsystem is capable of capturing thermodynamic data, hydraulic pressure curves, and micro-second cycle times at a frequency of 100 Hz. This highly granular

data is buffered locally within the machine's edge-computing module and can be transmitted via secure OPC UA protocols directly to the Client's centralized SCADA (Supervisory Control and Data Acquisition) environment. Furthermore, the control architecture complies with Safety Integrity Level 3 (SIL 3) standards. The safety perimeter includes dual-channel infrared light curtains, physical safety gates secured with RFID interlocking mechanisms, and redundant emergency stop circuits designed to immediately depressurize the massive hydraulic accumulators within 150 milliseconds of activation, thereby prioritizing operator safety above all other operational metrics.

3.4. Custom Die Tooling Specification and Non-Recurring Engineering (NRE)

To provide a true turnkey solution, the Vendor shall manufacture the initial customized die sets based entirely on the proprietary CAD models provided by the Client during the RFP phase. The dies are machined from premium H13 hot-work tool steel. Following the initial CNC roughing and finishing passes, the dies are subjected to a multi-stage vacuum heat treatment process to achieve a uniform Rockwell Hardness (HRC) of 52-54, optimizing the balance between surface wear resistance and core toughness. A singular, Non-Recurring Engineering (NRE) tooling setup fee is applied to the quotation. This fee comprehensively covers the CAD/CAM programming, multi-axis CNC machining time, metallurgical testing, and the initial die-proving trials conducted at the Vendor's Sahjanwa facility to verify volumetric fill and dimensional accuracy prior to shipment.

4. Project Execution, Testing, and Commissioning Protocols

The Vendor maintains a rigorous, multi-stage Quality Assurance (QA) protocol to ensure the Equipment conforms precisely to the agreed-upon technical specifications prior to physical handover. This methodology mitigates the risk of catastrophic failure upon deployment and ensures a smooth transition from procurement to active production.

4.1. Factory Acceptance Testing (FAT) Protocols

Prior to the dismantling and dispatch of the machinery from the GIDA Sahjanwa facility, the Equipment shall undergo a comprehensive Factory Acceptance Test (FAT). The Client is strongly encouraged and legally entitled to deploy up to three (3) engineering representatives to witness the FAT in person. The testing protocol is exhaustive, encompassing a dry-run cycling phase of forty-eight (48) continuous hours to verify hydraulic circuit integrity, thermal stability of the HPU, and the endurance of the VFD motors under simulated load.

A critical component of the FAT is the physical verification of all SIL-3 safety interlocks, including intentional fault-injection to test the emergency depressurization sequences. Furthermore, the Custom Die Tooling will undergo dimensional verification utilizing sub-micron Coordinate Measuring Machines (CMM). Upon the successful completion of these rigorous parameters, a FAT certificate will be generated and must be co-signed by the authorized representatives of both parties. This co-signed document acts as the definitive authorization

for the Vendor to initiate the packing and dispatch logistics.

4.2. Site Preparation Requirements and Client Responsibilities

The Client holds the sole and exclusive responsibility for ensuring the Toranagallu installation site is fully prepared to receive the heavy machinery prior to its arrival. These requirements are non-negotiable, as improper installation can permanently compromise the structural integrity of the press. The Client must complete all civil foundation works, including the casting of deep concrete pits and the installation of specialized vibration-damping isolation pads, constructed strictly according to the civil engineering schematics provided by the Vendor.

The Client must also guarantee the provision of a continuous, stable three-phase electrical supply (415V, 50Hz) equipped with appropriate harmonic filtering to protect the sensitive Siemens PLCs from grid fluctuations. Furthermore, the Client must ensure the availability of overhead gantry cranes (with a minimum certified lifting capacity of 50 metric tons) for the safe unloading, uprighting, and precise positioning of the machinery. Failure by the Client to complete site preparation, resulting in the inability of the Vendor's field engineers to commence installation, shall be subject to the logistics terms outlined in Section 7.2 of this technical proposal.

4.3. Site Acceptance Testing (SAT) and Final Handover

Following the mechanical assembly, hydraulic piping integration, and electrical wiring at the Client's site, the Vendor's specialized field-service engineers will orchestrate the Site Acceptance Test (SAT). Unlike the FAT, the SAT involves operating the Equipment under full load with actual production materials provided by the Client. Final acceptance of the Equipment shall be deemed to occur upon the successful, uninterrupted production of fifty (50) consecutive forged units that meet the strict dimensional tolerances specified in the Client's approved manufacturing drawings. Following the successful SAT, formal handover documentation will be executed, officially transferring operational control to the Client and initiating the warranty period.

5. Complex Pricing Table and Commercial Schedule

The following highly detailed pricing schedule delineates the individual line items, minimum order quantities (MOQ), volume discounts, logistics costs, and applicable taxation. All values are expressed in Indian National Rupees (INR). The pricing assumes the procurement of a dual-press production line configuration.

Item No.	Part Number / Reference	Description of Goods / Services	MOQ	Qty	Unit Price (INR)	Line Total (INR)
1.01	CHX-100	Heavy Duty	1	2	48,500,0	97,000,0

	OT-M26	Hydraulic Forging Press (1000 Ton), incl. Siemens S7-1500 PLC & standard SIL-3 safety perimeter .			00	00
1.02	ACV-500-HD	Automated Material Handling Conveyor System (5000kg/m capacity, VFD controlled, thermal resistant).	2	4	3,250,000	13,000,000
1.03	NRE-DIE-SET	Custom Die Tooling & Setup Fee (One-time engineering, CNC programming, heat treatment)	1	1	8,450,000	8,450,000

		t, and die-provi ng).				
1.04	SVC-CO M-01	Site Installatio n, Commiss ioning, and SAT (Estimate d 14 days on-site execution by two Senior Field Engineers).	1	1	1,200,00 0	1,200,00 0
1.05	AMC-PRE M-3Y	Optional: Premium Annual Maintena nce Contract (AMC) - 3 Year Term (Quarterl y visits, 24/7 remote support).	1	1	5,820,00 0	5,820,00 0
A		Subtotal (Base Equipme nt, Tooling, &				125,470, 000

		Services)				
B		Enterprise Volume Discount (Applied at 6.5% for strategic capital expenditure exceeding INR 100M)				(8,155,550)
C		Adjusted Subtotal				117,314,450
D		Heavy Freight, Haulage Logistics & Transit Insurance (DAP Toranagalu, Karnataka)				3,850,000
E		Total Taxable Value				121,164,450
F		IGST @ 18% (Standard Inter-state Capital Goods				21,809,601

		Tax Rate) See Footnote 1 regarding SEZ exceptions.				
G		GRAND TOTAL (Inclusive of all Freight, Transit Insurance, and Statutory Taxes)				142,974, 051

Footnote 1: Tax Implications and Letter of Undertaking (LUT). If the Client's Toranagallu facility operates as a formally designated Special Economic Zone (SEZ) unit, the supply of these capital goods may legally qualify as a Zero-Rated Supply under Indian GST law. In such a scenario, the Vendor requires a valid, government-issued Letter of Undertaking (LUT) from the Client prior to the generation of the final tax invoice. Upon receipt of the LUT, the invoice will be generated reflecting a zero IGST liability, bearing the mandatory statutory declaration: "Supply meant for export/SEZ under bond or Letter of Undertaking without payment of Integrated Tax (IGST)". In the absolute absence of valid SEZ documentation or an active LUT prior to the dispatch date, the full 18% IGST amount must be remitted by the Client to ensure the Vendor's tax compliance.

6. Financial Structure and Commercial Payment Terms

The financial arrangements governing this transaction are highly structured to mitigate systemic risk, manage the capital outlay required for raw materials, and ensure predictable cash flows for both the Vendor and the Client throughout the prolonged manufacturing cycle.

6.1. Contractual Payment Milestones

To support clean automated data extraction, the payment structure is fully itemized below:

Milestone No.	Milestone Phase / Trigger Event	Percentage (%)	Amount (INR)	Security / Payment Mechanism
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MS-01	Advance Mobilization Payment / Receipt of Signed Purchase Order	30%	42,892,215.30	Direct Electronic Bank Transfer (RTGS) within 7 Business Days of Order Acknowledgment.
MS-02	Pre-Dispatch Payment / Successful Factory Acceptance Test (FAT) Completion	60%	85,784,430.60	Sight Letter of Credit (LC) or direct RTGS prior to physical dispatch from GIDA factory.
MS-03	Final Handover / Successful Site Acceptance Test (SAT) Commissioning	10%	14,297,405.10	Direct RTGS payable net fifteen (15) Business Days post-signing of final SAT certificate.

Note: Engineering, raw material procurement, and manufacturing operations shall commence strictly after the clearing and receipt of the 30% Advance Payment into the Vendor's bank account.

6.2. Late Payment Penalties and Financial Security Covenants

In commercial capital equipment manufacturing, timely financial remittances are essential. Should the Client experience an administrative delay in processing milestone payments, a commercial rate of interest shall be applicable to protect both parties' cash flow predictability. Late payments shall be subject to a charge equal to the **State Bank of India (SBI) Benchmark Prime Lending Rate (BPLR) (currently 14.65% per annum, effective June 15, 2026) plus 1.50% per annum** (totaling 16.15% per annum, or approximately 1.35% per month). This late payment charge shall be calculated pro-rata on the outstanding balance for the exact number of calendar days of delay, payable upon demand.

Furthermore, the Vendor continuously monitors mutual risk. If the Client experiences a formal credit rating downgrade by a recognized rating agency (such as CRISIL or ICRA) below

investment grade during the active manufacturing cycle, the Vendor reserves the right to request a mutually agreeable financial security mechanism (such as an unconditional bank guarantee or confirming Letter of Credit) before releasing the Goods to the heavy-haulage carrier.

6.3. Title Retention and Risk of Loss

Notwithstanding the physical location of the machinery, the legal title and ownership of the Goods shall remain wholly vested in the Vendor until the Grand Total—including any mutually agreed storage fees or accrued interest—has been paid in full. However, the Risk of Loss, damage, or destruction to the Goods shall definitively transfer to the Client at the exact moment the Goods are physically delivered to the Toranagallu site on a DAP basis.

7. Delivery Logistics, Lead Times, and Demurrage

7.1. Technical & Delivery Timeline Parameters

The operational, manufacturing, and transport parameters are structured below to enable precise extraction:

Parameter Key	Contractual Value	Reference / Technical Notes
Minimum Manufacturing Lead Time	16 Weeks (112 Days)	Calculated from receipt of advance and drawing sign-off.
Maximum Manufacturing Lead Time	20 Weeks (140 Days)	Includes standard supply chain and material buffers.
Target Dispatch Window	October 2026	Subject to PO execution and foundation clearance.
Delivery Basis (Incoterms 2020)	DAP JSW Toranagallu	Delivered to JSW Site, Bellary, Karnataka, India.
Post-Arrival Inspection Window	7 Calendar Days	For notifying non-conforming items or shortages.

All stated delivery dates are estimates driven by heavy industrial casting lead times. The Vendor shall use commercially reasonable efforts to deliver the Goods by the expected target window.

7.2. Deferred Delivery and Specialized Holding Fees

If the manufacturing of the Goods is completed and the equipment passes FAT, but the Client is unable to receive delivery due to site unpreparedness, lack of municipal permits, or civil works delays at Toranagallu, the Client shall be entitled to a **fourteen (14) day zero-cost grace period** from the date of readiness notification.

If the Client remains unable to accept delivery after day 14, the Vendor will coordinate specialized storage and preservation. To protect the high-precision components (such as proportional servo-valves and micro-polished columns) from humidity and environmental degradation, a nominal site holding and maintenance fee of **INR 6,500 per day** will apply. This charge strictly covers the costs of secure warehousing, routine nitrogen-gas purging of cylinder seals, and thermal management. Risk in the Goods and invoicing milestones shall continue to progress as if delivery had occurred.

8. Product Warranties, Extended Coverage, and Service Level Agreements

8.1. Standard Limited Warranty Specification

The Vendor warrants that the CHX-1000T Press and the ACV-500 Conveyors shall be free from defects in materials, metallurgy, and workmanship, and shall strictly conform to the agreed-upon technical specifications. This standard warranty is valid for a period of twenty-four (24) months from the date of successful SAT commissioning, or thirty (30) months from the date of physical dispatch from the Vendor's facility, whichever milestone occurs first.

Warranty Conditions and Exclusions:

- The warranty is strictly contingent upon the Client handling, installing, storing, and operating the Equipment in absolute accordance with the standard operating procedures (SOP) and maintenance schedules outlined in the Vendor's technical manuals.
- The standard warranty explicitly excludes all highly stressed wear parts and consumable items. This exclusion encompasses, but is not limited to, high-pressure hydraulic seals, O-rings, custom die blocks, bronze guide bushings, and synthetic hydraulic lubricants.
- The warranty shall be immediately rendered null and void if the Equipment is structurally modified, subjected to unauthorized third-party repairs without written consent, damaged by improper electrical spikes, or operated beyond its stated 1000-Ton capacity without the express written authorization of the Vendor.
- To initiate a valid warranty claim, the Client must formally notify the Vendor in writing within ten (10) business days of discovering the alleged defect. This notification must precisely describe the failure mode, the extent of the damage, and include the relevant digital telemetry data exported from the S7-1500 controller.

8.2. Extended Warranty Configuration and Risk Mitigation

Recognizing the capital-intensive nature of this procurement, the Vendor offers an optional Extended Warranty framework. Industry data suggests that comprehensive warranty costs

typically range from 2% to 15% of net sales, depending on the risk profile of the machinery. For an additional premium representing approximately 12-15% of the base equipment cost (as detailed in Line Item 1.05 of the pricing table, bundled as a Premium AMC), the Client may purchase a 3-to-5-Year Comprehensive Protection Plan.

The Extended Warranty significantly broadens the scope of coverage to include the replacement of major hydraulic accumulators and pump arrays up to year five, which normally fall outside basic coverage. It also provides pro-rata compensation for catastrophic structural frame failures, where the Client pays only a portion of the replacement costs based on how long the product has been in service. Crucially, it guarantees the prioritized dispatch of field-service engineers within 48 hours of a reported critical failure.

8.3. Annual Maintenance Contract (AMC) Service Level Agreement

Line item 1.05 of the quotation details a comprehensive three-year AMC. If this line item is accepted, the AMC establishes a formal, highly structured Service Level Agreement (SLA) between the Vendor and the Client. Under this SLA, the Vendor shall conduct four (4) quarterly preventative maintenance site visits per annum. During these visits, Vendor engineers will perform rigorous ultrasonic inspections of the tie-rods, recalibrate the proportional servo-valves, analyze hydraulic fluid viscosity and particulate counts, and update PLC firmware. Furthermore, the Vendor shall provide 24/7/365 remote diagnostic support via secure VPN tunneling into the S7-1500 controller to troubleshoot software anomalies in real-time. Under the AMC, critical downtime events (classified as Tier 1) command a maximum remote response time of two (2) hours and guaranteed on-site deployment within forty-eight (48) hours.

This quotation is subject to the execution of a mutually agreeable Master Supply Agreement.

9. Formal Acceptance and Signature Block

By issuing a formal Purchase Order referencing the Quotation Number **QTN-2026-8842A**, the Buyer assents to the technical specifications and commercial pricing structures contained within this document. While both parties' legal teams shall utilize the forthcoming Master Supply Agreement (MSA) to finalize mutually agreeable boilerplate, any preliminary Purchase Order issued under this quotation is expected to align with the core commercial and technical baselines established herein.

To formally accept this quotation, legally bind the pricing table, and initiate the crucial engineering and procurement phase, an authorized, legally empowered representative of the Client must execute the signature block below and return a scanned copy alongside the official Purchase Order and the SWIFT remittance advice for the 30% Advance Payment.

For and on behalf of the Vendor: Centaurix Heavy Industries Ltd.

Authorized Signatory Name: Title: Senior Commercial Contracts Manager / Lead Sales Engineer
Date: June 17, 2026

For and on behalf of the Client: JSW Energy Ltd.

Authorized Signatory Name: Title: Date: Purchase Order Reference Number:

Annexure A: Proposed Mutual Limitation of Liability Clause (For Discussion)

As part of the forthcoming Master Supply Agreement negotiations, Centaurix Heavy Industries Ltd. proposes the following balanced, reciprocal risk-allocation framework to ensure collaborative and predictable protection for both parties:

1. Mutual Waiver of Consequential Damages IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BUSINESS REPUTATION, OR DOWNTIME COSTS, ARISING OUT OF OR RELATING TO THIS AGREEMENT, REGARDLESS OF THE LEGAL THEORY ASSERTED.

2. Mutual Limitation of Liability (Cap) EXCEPT FOR THE EXCLUSIONS SET FORTH IN SECTION 3, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, SHALL BE STRICTLY LIMITED TO ONE HUNDRED PERCENT (100%) OF THE TOTAL PURCHASE PRICE PAID OR PAYABLE BY THE BUYER FOR THE SPECIFIC EQUIPMENT GIVING RISE TO THE CLAIM.

3. Standard Exclusions (Carve-outs) The limitations and waivers set forth in Sections 1 and 2 shall not apply to limit or cap damages or liabilities arising from: (a) a party's gross negligence, willful misconduct, or fraud; (b) claims for third-party intellectual property infringement; (c) breach of confidentiality obligations; or (d) personal injury, death, or tangible property damage resulting from a party's negligence.